

		Amy objected to the Petition on various grounds, including the assertion Tricia lacked standing to file the Petition because Steven lacked the capacity to sign financial power of attorney. (ROA 14 at 2:6-12.) Steven passed away in April 2025. (ROA 99 at 17:6.) Tricia is Steven's surviving spouse, the trustee of Steven's revocable living trust, and the nominated executor of Steve's will. (ROA 99 at 17:7-12.) In July 2025, Tricia supplemented her petition to assert her standing to pursue the petition as Steven's successor in interest. (ROA 21.) In April 2026, Amy served a series of subpoenas, including the subpoena that is the subject of the motion to quash currently before the court. The subpoena seeks Steven's medical records from Kaiser Permanente. Tricia's motion seeks to quash that subpoena on grounds of relevance, privilege, and privacy. Amy as the subpoenaing party bears the burden of showing a ""plausible justification"" for acquiring documents from a third party." (<i>Facebook, Inc. v. Superior Court (Touchstone)</i> (2020) 10 Cal.5th 329, 345.) Amy did not file any opposition to the motion. Accordingly, she fails to meet her burden. Further, the subpoena does not seek documents relevant to the Trust or any issue raised by the Petition. Steven's medical records are relevant only to Amy's assertion that the power of attorney under which Tricia filed the Petition was void based on Steven's lack of capacity. Amy, however, is now proceeding as Steven's successor in interest. (Code of Civ. Proc., § 377.30 et seq.) No dispute is presented by the pleadings as to Tricia's standing as successor in interest. Because the pleadings govern what is relevant and in the absence of any opposition, the motion to quash is GRANTED. Amy is directed to give notice.
2	Pickler – Trust; 30-2025-01478211	DISMISSED